NURAVA HUBSTORES

MERCHANT STORE HOSTING AND SAAS SERVICES AGREEMENT — DRAFT V2

Draft agreement version: merchant-agreement-v2-draft **Status:** Draft for legal review; not activated by the application **Prepared date:** _____

> **Draft notice:** This proposed update clarifies that the platform separately operates its own store. It does not change the agreement version currently accepted in the application. The current application version remains **merchant-agreement-v1** until the draft is approved and any required acceptance rollout is completed.

This Agreement records the current terms for a merchant using Nurava HubStores. The plan, price, setup fee, included features, and any paid add-ons applicable to a Merchant are the ones shown in the onboarding flow or merchant workspace when selected.

1. Parties and store

Platform provider: Nurava HubStores

Merchant / business name: _____

Merchant account email: _____

Store name and URL: _____

Selected plan: _____ **Setup fee:** _____

Pilot start date, if applicable: _____

2. Platform services and merchant account

Nurava HubStores provides store discovery, hosting, storefront technology, merchant tools, and platform support. The Merchant selects a plan and any available paid add-ons. The current price, plan features, product and staff limits, and add-on details are shown during onboarding or in the merchant workspace.

The Merchant must provide accurate business and account information, keep login credentials secure, and use the Platform for lawful business activity. The Merchant is responsible for its store content, catalogue, customer communications, and applicable compliance obligations.

3. Billing and M-Pesa

Subscriptions are billed monthly in Kenyan Shillings (KES). The Merchant pays the one-time setup fee before the six-month pilot starts. The selected plan applies during the pilot, and its monthly subscription becomes payable from month seven. A 14-day grace period applies to due payments.

Platform invoices are paid using the payment destination and instructions configured by Nurava HubStores. PayBill or Till collections use an M-Pesa prompt that the Merchant approves with its PIN. If Nurava HubStores configures a registered phone number, the Merchant sends money manually and submits the receipt; a platform administrator verifies the receipt against the account statement before applying the payment. Payments are not automatic recurring debits.

The agreed SaaS pricing policy is VAT-inclusive. Where VAT applies and is enabled for the registered business, subscription, setup-fee, and paid add-on prices include 16% VAT. The invoice shows the applicable rate, net amount, VAT amount, account credit, and final amount due. Tax registration and service classification determine when VAT is charged.

4. Cancellation, refunds, and service credits

A voluntary cancellation does not create a routine subscription refund; access continues through the paid period. Refunds are limited to duplicate payments, billing errors, or cases required by law. The setup fee is refundable only if Nurava HubStores cannot provision the store before setup work begins; it is non-refundable after setup work starts.

A verified Nurava HubStores or core-hosting outage lasting at least 24 continuous hours creates an account credit for paid plans: one day of recurring monthly subscription value for each complete 24-hour period, capped at one monthly subscription fee. Credits apply to future subscription invoices and not to setup fees. Planned maintenance, merchant-side internet or device failures, force majeure, and optional third-party service failures are excluded.

5. Shopper sales and merchant responsibilities

Each independent Merchant is the seller of its products and controls product availability, prices, delivery, refunds, replacements, warranties, taxes, and customer support. Nurava HubStores provides the platform connection and merchant technology; it does not become the merchant of record for products listed by independent stores.

The Merchant is responsible for shopper orders and enquiries, collecting or arranging shopper payments, delivery or collection, returns, refunds, warranties, product information, and related obligations for the Merchant's store. Where enabled, merchant-store shopper payments are routed to the Merchant's configured destination. PayBill or Till payments use the configured M-Pesa route and provider confirmation. For a registered-phone Send Money payment, the shopper submits a receipt and the Merchant verifies it before confirming the order. Nurava HubStores does not receive merchant-store sale funds or charge the Merchant a product-sale commission under the current merchant checkout model.

Nurava HubStores separately operates the platform-owned store at `/store/nurava-marketplace`. That store has its own catalog, orders, supplier coordination, fulfillment and refund records, and separately designated product-sale payment configuration. Its payment route is distinct from merchant payment destinations and SaaS billing, and is available only when configured and authorized by the relevant payment provider. This Agreement governs the Merchant's hosted store and does not make the Merchant responsible for the platform-owned store's products or orders.

6. Store content and appropriate use

The Merchant must provide accurate store and product information, keep account access secure, respect shopper consent and unsubscribe requests, and use the Platform only for lawful activity. The Merchant must not upload malware, unlawful material, stolen content, misleading offers, prohibited goods, or another person's confidential information without authority, or attempt to access another merchant's data or account.

The Merchant retains its business name, logos, product content, photographs, and other materials it supplies. The Merchant authorizes Nurava HubStores to host, display, secure, and back up those materials as needed to provide the Platform services. Nurava HubStores retains its Platform software, infrastructure, templates, trademarks, and other Platform materials.

7. Data retention and deletion

After paid access ends, merchant workspace data is retained for 90 days and then deleted or anonymized. Closed shopper enquiries and contact details are retained for 12 months after the last interaction while the workspace remains active. Sensitive verification files are deleted 90 days after the final decision or account end, whichever is later. SaaS billing, invoice, payment, refund or credit, audit, and legal-acceptance records are retained for 7 years, unless a legal hold or applicable law requires longer.

8. Access, support, and suspension

The Merchant can contact Nurava HubStores about platform access, hosting, billing, or technical support through the published support channels. Nurava HubStores may limit or suspend platform access for non-payment, security risks, unlawful activity, or material misuse. The Merchant remains responsible for resolving its customer obligations while access is limited or suspended.

9. Terms updates and acceptance

The current merchant terms version is recorded when the Merchant accepts the terms. Material changes receive at least 30 days' notice and apply to an existing Merchant at renewal; the Merchant remains on the accepted version until then. Urgent security or legal changes may require earlier acceptance. Minor formatting or typo corrections do not by themselves require a new version.

The Platform records acceptance of the current merchant terms, privacy notice, and merchant agreement at the applicable onboarding and selling steps. This proposed draft is **merchant-agreement-v2-draft** and is not the current application agreement. The application continues to record **merchant-agreement-v1** until the draft is approved and activated through an appropriate acceptance process.

10. Agreement acknowledgement

By signing below, the parties acknowledge this Agreement and the current merchant terms for use of Nurava HubStores. The Merchant confirms that it can review the selected plan, pricing, and available features in onboarding or in its workspace.

For Nurava HubStores

Name: _____ Role: _____

Signature: _____ Date: _____

For the Merchant

Name: _____ Business: _____

Signature: _____ Date: _____

End of Draft — Nurava HubStores Merchant Store Hosting and SaaS Services Agreement, merchant-agreement-v2-draft